

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased _____

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FRANCES ARNOLD,

Plaintiff designates

Bronx County as the place of trial

Plaintiff,

The basis of the venue is where

plaintiff resides and the tort arose

-against-

THE CITY OF NEW YORK, YAKHEEM WHITE P.O.
OF PSA 7, SHIELD #11719, TAX ID #948608, CARLA
DINOME P.O. OF PSA 7, SHIELD #5798, TAX ID
#953264, AND OTHER NEW YORK CITY POLICE
OFFICERS ON CCRB #201606290 WHOSE NAMES
ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON JULY 19, 2016 AND NO
OTHER,

SUMMONS

Plaintiff resides at

FRANCES ARNOLD

177 Willis Avenue

Bronx, NY 10454

Defendants.

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TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and, in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York

February 23, 2018



JOHN R. DEPAOLA & ASSOCIATES PLLC

BY: JOHN K. KOUROUPAS

Attorneys for Plaintiff(s)

42-40 Bell Boulevard Suite 500

Bayside, New York 11361

(718) 281-0400 / (718) 281-4000

Defendants' Addresses:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**P.O. YAHKEEM WHITE of PSA 7
SHIELD #11719, TAX ID #948608**

737 Melrose Ave
Bronx, NY 10455

**P.O. CARLA DINOME of PSA 7
SHIELD #5798, TAX ID #953264**

737 Melrose Ave
Bronx, NY 10455

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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FRANCES ARNOLD,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, YAKHEEM WHITE P.O.
OF PSA 7, SHIELD #11719, TAX ID #948608, CARLA
DINOME P.O. OF PSA 7, SHIELD #5798, TAX ID
#953264, AND OTHER NEW YORK CITY POLICE
OFFICERS ON CCRB #201606290 WHOSE NAMES
ARE NOT KNOWN AT THIS TIME N/H/A
JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON JULY 19, 2016 AND NO
OTHER,

Defendants.

-----X
FRANCES ARNOLD, by her attorneys, JOHN R. DEPAOLA & ASSOCIATES
PLLC, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. At all times mentioned, Plaintiff FRANCES ARNOLD was a resident of Bronx County, City and State of New York.
2. At all times mentioned, Defendant CITY OF NEW YORK, was and is a municipal corporation duly organized and existing by virtue of the laws of the State of New York.
3. Upon information and belief, at all times mentioned, Defendants YAKHEEM WHITE P.O. OF PSA 7, SHIELD #11719, TAX ID #948608, CARLA DINOME P.O. OF PSA 7, SHIELD #5798, TAX ID #953264, AND OTHER NEW YORK CITY POLICE OFFICERS ON ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, were

and are police officers of the Defendant City of New York, and at all times herein were acting in such capacity as the agents, servants and employees of the Defendant, **THE CITY OF NEW YORK**.

4. On or about July 19, 2016, at approximately 1:00 P.M., in the vicinity of the front of 579 Courtland Ave and East 150th Street, County of Bronx, State of New York the Defendants jointly and severally in their capacity as police officers, wrongfully touched, grabbed, handcuffed and seized the Plaintiff **FRANCES ARNOLD**, in an excessive manner about her person, causing her physical pain and mental suffering. At no time did the Defendants have legal cause to grab, handcuff, seize or touch the Plaintiff, nor did the Plaintiff consent to this illegal touching nor was it privileged by law. This case can be investigated under CCRB #201606290

AS AND FOR A SECOND CAUSE OF ACTION

5. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "4" with full force and effect as though set forth at length herein.
6. On or about July 19, 2016, at approximately 1:00 P.M., in the vicinity of the front of 579 Courtland Ave and East 150th Street, County of Bronx, State of New York, the Defendants jointly and severally did place Plaintiff **FRANCES ARNOLD** in imminent fear of physical contact by approaching the Plaintiff with their loaded firearms, outstretched limbs and other objects which they used to physically seize, strike and restrain the Plaintiff. All of the above actions placed the Plaintiff in imminent fear of physical contact.

At no time did the Plaintiff consent to the unlawful actions of the Defendants.

AS AND FOR A THIRD CAUSE OF ACTION

7. Plaintiff repeats, reiterates and re-alleges all of the allegations contained in Paragraphs "1" through "6" with full force and effect as though set forth at length herein.
8. On or about July 19, 2016, at approximately 1:00 P.M., in the vicinity of the front of 579 Courtland Ave and East 150th Street, County of Bronx, State of New York, the Defendants, jointly and severally without any warrant, order or other legal process and without any legal right, wrongfully and unlawfully arrested the Plaintiff, restrained her and her liberty. The Plaintiff was thereafter held in custody over the course of 20-30 minutes until she was released. The Defendants intentionally confined the Plaintiff without his consent and the confinement was not otherwise privileged by law and, at all times, the Plaintiff was conscious of his confinement.

AS AND FOR A FOURTH CAUSE OF ACTION

9. Plaintiff incorporates, repeats, and re-alleges all of the allegations contained in Paragraphs "1" through "8" with full force and effect as though set forth at length herein.
10. Defendants **YAKHEEM WHITE P.O. OF PSA 7, SHIELD #11719, TAX ID #948608, CARLA DINOME P.O. OF PSA 7, SHIELD #5798, TAX ID #953264, AND OTHER NEW YORK CITY POLICE OFFICERS ON ARREST WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A**

JOHN/JANE DOE I-IV, were at all times relevant, duly appointed and acting officers of the City of New York Police Department.

11. At all times mentioned herein, said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
12. Plaintiff **FRANCES ARNOLD** is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
13. The Defendant **CITY OF NEW YORK** is a municipality duly incorporated under the laws of the State of New York.
14. On or about July 19, 2016, the Defendants, armed police, while effectuating the seizure of the Plaintiff **FRANCES ARNOLD**, did search, seize, assault and commit a battery and grab the person of the Plaintiff without a court authorized arrest or search warrant. They did physically seize the person of the Plaintiff during the arrest process in an unlawful and excessive manner. The Plaintiff was falsely arrested, unlawfully imprisoned, assaulted, and had multiple batteries committed against him, without the Defendants possessing probable cause to do so. Plaintiff is unaware of the names of the officers, aside from the officers already named. As far as particularizing the actions of said officers, CCRB #201606290 by executive director Mina Q. Malik of CCRB found that there was an abuse of police authority when **YAKHEEM WHITE P.O. OF PSA 7, SHIELD #11719, TAX ID #948608**

unlawfully stopped and seized Plaintiff on the street without probable cause. Plaintiff was not formally taken into custody from the scene so Plaintiff cannot identify the officers by name. CCRB investigated **YAKHEEM WHITE P.O. OF PSA 7, SHIELD #11719, TAX ID #948608** to have illegally stopped, frisked, searched and used excessive force on plaintiff. CCRB investigated the actions of **CARLA DINOME P.O. OF PSA 7, SHIELD #5798, TAX ID #953264** including but not limited to an illegal stop, frisk and search of plaintiff. Officers did illegally search and seize plaintiff while she was walking on the sidewalk. Officers, believed to be **YAKHEEM WHITE P.O. OF PSA 7, SHIELD #11719, TAX ID #948608** and **CARLA DINOME P.O. OF PSA 7, SHIELD #5798, TAX ID #953264**, illegally stopped and excessive force was used on Plaintiff in the process of stopping and handcuffing her.

15. The above action of the Defendants resulted in the Plaintiff being deprived of the following rights protected under the United States Constitution:
- a. Freedom from assault to his person;
 - b. Freedom from battery to his person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from malicious prosecution;
 - f. Freedom from the use of excessive force during the arrest process;
 - g. Freedom from unlawful imprisonment;
 - h. Freedom from loss of his liberty.
 - i. Freedom from being illegally strip-searched.

16. The Defendants subjected the Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights or with deliberate indifference to those rights protected under the Fourth and Fourteenth Amendments of the United States Constitution.
17. The direct and proximate result of the Defendants' acts are that the Plaintiff has suffered severe and permanent injuries of a psychological nature. He was forced to endure pain and suffering, all to his detriment.

AS AND FOR A SIXTH CAUSE OF ACTION

(This Cause of action only applies against the Individually named Police Officers not the City of New York or officers sued in their official capacity)

18. Plaintiff incorporates, repeats and re-alleges all of the allegations contained in Paragraphs "1" through "17" with full force and effect as though set forth at length herein.
19. Defendant **CITY OF NEW YORK** has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual, especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based on probable cause.
20. **THE CITY OF NEW YORK** was negligent by failing to implement a policy with its Police Department and instruct police officers who, absent the

consent of the Plaintiff (or similarly situated individuals) or without the possession of a court authorized arrest, a search warrant, said police officers of the City of New York are not to arrest individuals such as the Plaintiff here where probable cause is lacking and the use of force should only be reasonable when an individual resists arrest and should not be used where a criminal defendant is not resisting arrest.

21. **THE CITY OF NEW YORK** is negligent due to its failure to implement a policy with its Police Department or actively enforce the law, if any of the following are lacking:
 1. Probable cause must be present before an individual such as the Plaintiff herein can be arrested.
 2. Excessive force cannot be used against an individual who does not physically resist arrest.
 3. An individual who sustains physical injury at the hands of the police during the arrest process should receive prompt medical attention.
22. The foregoing acts, omissions and systemic failures are customs and policies of the **CITY OF NEW YORK** which caused the police officers to falsely arrest, maliciously prosecute, seize illegally and search the Plaintiff commit an assault/battery to his person and denied him prompt medical attention under the belief that they would suffer no disciplinary actions for their failure to take proper or prudent steps in this case.

AS AND FOR A SEVENTH CAUSE OF ACTION

23. Plaintiff repeats, reiterates, and re-alleges all of the allegations contained in

paragraphs "1" through "22" as it set forth at length herein.

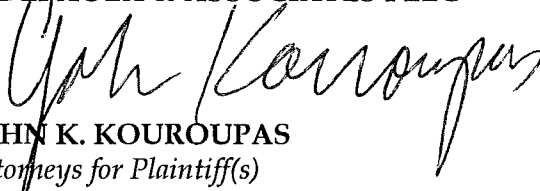
24. Defendant **CITY OF NEW YORK** was negligent in that prior to and at the time of the acts complained of herein, due to the prior history of the Police Officer Defendants, knew or should have known of the bad disposition of said Defendants or had knowledge of facts that would put a reasonably prudent employer on inquiry concerning their bad disposition and the fact that these officers were not suitable to be hired and employed by the **CITY OF NEW YORK** and that due to their lack of training, these officers should have had adequate supervision so that they would not arrest innocent individuals nor use excessive force during the arrest process.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court where otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case and punitive damages.

Dated: Bayside, New York
February 23, 2018

Yours, etc.

JOHN R. DEPAOLA & ASSOCIATES PLLC

BY:  **JOHN K. KOUROUPAS**
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 500
Bayside, New York 11361
(718) 281-0400 / (718) 281-4000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
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Plaintiff,

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THE CITY OF NEW YORK, YAKHEEM WHITE P.O.
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JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE
INCIDENT THAT AROSE ON JULY 19, 2016 AND NO
OTHER,

VERIFICATION

Defendants.

-----X

I, JOHN K. KOUROUPAS, an attorney admitted to practice in the courts of New York State, state that I am a member of the firm of JOHN R. DEPAOLA & ASSOCIATES PLLC, the attorneys of record for Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
February 23, 2018



JOHN K. KOUROUPAS

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SUPREME COURT OF THE STATE OF NEW YORK
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THE CITY OF NEW YORK, YAKHEEM WHITE P.O. OF PSA 7, SHIELD #11719, TAX ID #948608, CARLA DINOME P.O. OF PSA 7, SHIELD #5798, TAX ID #953264, AND OTHER NEW YORK CITY POLICE OFFICERS ON CCRB #201606290 WHOSE NAMES ARE NOT KNOWN AT THIS TIME N/H/A JOHN/JANE DOE I-IV, AS IT PERTAINS TO THE INCIDENT THAT AROSE ON JULY 19, 2016 AND NO OTHER,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

JOHN R. DEPAOLA & ASSOCIATES PLLC
BY: JOHN K. KOUROUPAS
Attorney for Plaintiff(s)
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK CITY

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for